

TAB 22



Board of Education Report

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File #: Res-026-22/23, Version: 2

Ms. Goldberg, Dr. Rivas- Creating a Charter Schools Co-Location Policy to Mitigate Impacts Caused by Proposition 39 (Res-026-22/23) (Noticed June 13, 2023)

Whereas, ~~The Los Angeles Unified School District does not have a clear, comprehensive, and transparent policy on how Proposition 39 should be implemented in order to minimize the harm that charter co-locations cause district schools, and it~~ **It** is the responsibility of the Governing Board of the Los Angeles Unified School District to ensure the best possible learning environment for our students, **which includes a commitment to continuous evaluation and improvement of existing practices, policies, and procedures, including those relating to the District's Proposition 39 compliance efforts and resulting impacts caused by co-locations;**

Whereas, The co-location of charter schools, ~~as required by~~ **pursuant to** Proposition 39, is **often** detrimental to District schools and the students they educate, and has a tangible negative impact on the District's ability to maintain and grow important priorities including, but not limited to, Black Student Achievement Program (BSAP), Priority Schools, and Community Schools; **now, therefore, be it**

~~Whereas, Efforts to support such important priorities, mitigate impacts, and focus on student success throughout the District's comprehensive Proposition 39 space matching process currently include a wide range of considerations, as well as valuable input from important participants and stakeholders, including, but not limited to, District and Region Office leadership, Charter Schools Division and Facilities Services Division staff, school site staff, and labor partners (including United Teachers Los Angeles);~~

~~Whereas, To ensure robust information gathering, proper allocations of Proposition 39 space, and appropriate oversight and reporting to the Board, District staff also currently reviews and verifies charter schools' projected and actual average daily attendance, and monitors and reports charter schools' payment of facilities-related costs and over-allocated space reimbursements in accordance with applicable law; now, therefore, be it~~

Resolved, That the Superintendent shall report back to the Committee of the Whole in ~~90~~ **45** days with a **Proposition 39** Charter Schools Co-Location Policy (Policy) recommended for adoption by the Governing Board of the Los Angeles Unified School District;

Resolved further, That the Policy, **as operationally feasible and permitted by law**, shall enumerate clear guidelines that ~~prohibit co-locations on the District's 100 Priority Schools, prohibit grade span arrangements that negatively impact student safety and build charter school pipelines that actively deter students from attending district schools, prohibit co-locations on schools with special programs such as BSAP, and Community Schools, and prevent co-locations that compromise schools' capacity to serve neighborhood kids, as operationally feasible and permitted by law,~~ **avoid Proposition 39 co-locations that: (1) are on school sites with the District's 100 Priority Schools, BSAP schools, and Community**

Schools, (2) compromise District schools' capacity to serve neighborhood children, and/or (3) result in grade span arrangements that negatively impact student safety and build charter school pipelines that actively deter students from attending District schools, all so that the District can focus on supporting its most fragile students and schools, key programs, and student safety;

Resolved further, That the Policy shall guide District decisions related to all new school co-location requests and shall also be applied whenever existing co-locations change, for reasons including, but not limited to insufficient space, addition of grade levels, and other material revisions to their charter;

Resolved further, That the Policy shall, as permitted by law, modify the District's existing Proposition 39 practices to ~~require~~ ensure the following: more robust information-gathering, including a site visit to the District school before recommending a co-locations, ~~require improved and more frequent~~ verification of charter schools' average daily attendance, ~~create Board oversight of a Board vote on the approval of all~~ Alternate Agreements, and ~~improve~~ monitoring, enforcement, and reporting of charter schools' payment of co-location fees facilities costs and ~~overallocation fees~~ overallocated space reimbursements;

Resolved further, That the District's annual preliminary co-location proposals, ~~to charters and its final offers, and Alternative Agreements~~ should both all be accompanied by a report to the Board on how the Policy was adhered to in the process; and, be it finally

Resolved, That the Superintendent shall report back in 90 days with a clear plan and timeline for the creation of a redesigned Charter Schools Division page on the district's website or a standalone website which, in addition to its current content, will provide a clearinghouse to the public for information about charter schools, including charter petitions, co-location requests and offers, reports to the Board, Local Control and Accountability Plans, average daily attendance reports, and other relevant data.